

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Joan Comparet Cassani
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Lucas, Gerrell
CDC No.: AI6792
Case No.: NA086347
Date of Sentence: 09/02/2011

Dear Honorable Joan Comparet Cassani:

The purpose of this letter is to provide the court with authority to resentence Gerrell Lucas pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lucas was sentenced in 2011, and was convicted of section 245, subdivision (A)(2), ASSAULT WITH A FIREARM. The trial court sentenced inmate Lucas on 09/02/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lucas's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lucas's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

OK TO GO STWD NOTED
Sept 16, 11 DC
A16792

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES; SOUTH DISTRICT		CONFORMED COPY OF ORIGINAL FILED Los Angeles Superior Court	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: LUCAS, GERRELL	DOB: 01-24-92	NA086347 -A	SEP 12 2011 John A. Clarke, Executive Officer/Clerk By <i>[Signature]</i>
AKA: LIL BLUE	 ☐ NOT PRESENT	-B	
CII NO.: A25852454		-C	
BOOKING NO.: 2416777		-D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 09-02-11	DEPT. NO. S10	JUDGE JOAN COMPARET CASSANI	
CLERK LORNA MCGREGGOR	REPORTER RHONDA GALYAN	PROBATION NO. OR PROBATION OFFICER X-2075843 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE KENNETH M. FULLER		COUNSEL FOR DEFENDANT EDWIN S. NAJERA-PD ☐ APPTD.	

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment
____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Prior to 1995)	654 DAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
04	PC	245(A)(2)	ASSAULT WITH A FIREARM	2009	09-02-11			X	M							3	0
05	PC	245(A)(2)	ASSAULT WITH A FIREARM	2009	09-02-11			X			X					1	0
06	PC	245(A)(2)	ASSAULT WITH A FIREARM	2009	09-02-11			X			X					1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
04	12022.7(A)	3	186.22(B)(1)(C)	10	12022.5(A)	10	23 0
05	12022.5(A)	S	186.22(B)(1)(C)	3.4			3 4
06	12022.5(A)	S	186.22(B)(1)(C)	3.4			3 4

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 34 8

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: LUCAS, GERRELL			
NA086347	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$120.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

DEFT. TO PAY \$90.00 CRIMINAL CONVICTION ASSESSMENT PURSUANT TO SECTION 70373 G.C.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
 Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	816	710	106 ☒ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
09-02-11		DMH	CDCR CRC
		()	() ()

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation,
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made.

DEPUTY'S SIGNATURE

K. GRAY-GILMORE

09-12-11